testbook PASS PRO MAX

General Knowledge

Indian Polity

STUDY NOTES

Emergency Provisions

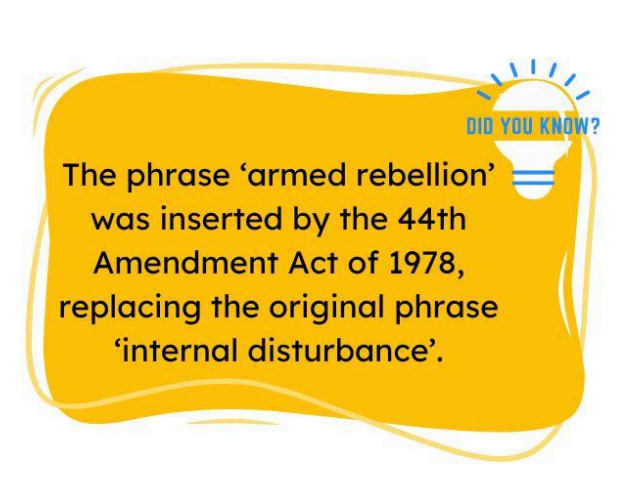
EMERGENCY PROVISIONS

Introduction:

- **Emergency Provisions** refer to **special legal measures** in a country's constitution allowing the government to act decisively during **extraordinary situations** like war, rebellion, or national crises.
- The Emergency Provisions are contained in Part XVIII of the Constitution, from Article 352 to 360.
- The Emergency Provisions in Indian Constitution have been taken from the Weimar Constitution of Germany.
- These provisions are meant to protect the **Constitution**, **democratic system**, and safeguard the country's **sovereignty**, **unity**, **integrity**, and **security**.
- During an **Emergency**, the **Central government** gains complete control, and the **States come under the Centre's authority**.
- The **federal structure** temporarily becomes **unitary** without amending the Constitution, a **unique feature** of India's constitutional framework.

Types of Emergencies in the Indian Constitution:

- **National Emergency (Article 352)**
  - Declared due to **war**, **external aggression**, or **armed rebellion**.
  - Officially referred to as **'Proclamation of Emergency'** in the Constitution.
  - **Safeguards**:
    - Written recommendation from the **Cabinet**.
    - Must be approved by **both houses** within **one month** by a special majority.
    - Can last for **6 months** and be extended indefinitely with parliamentary approval every 6 months.



- **President's Rule (Article 356)**
  - Imposed due to the **failure of Constitutional Machinery** in a state.
  - Also known as **'State Emergency'** or **'Constitutional Emergency'**.

Minerva Mills Case of 1980

In Minerva Mills Case, 1980, the Supreme Court held that the proclamation of National Emergency can be challenged in a court on grounds of malafide or when the declaration was based on extraneous or irrelevant facts.

- The Constitution does not explicitly use the term **'Emergency'** for this provision.
- Imposed when a state cannot function in accordance with the provisions of the Constitution.
- Declared by the **President of India** based on the **Governor's report** or otherwise.
- Must be approved by both houses within **two months** and can be extended for up to **three years**.

Financial Emergency (Article 360)

- Declared when there is a threat to **India's financial stability** or **credit**.
- Declared by the **President of India**.
- Must be approved by Parliament within **two months**.
- No maximum period for its continuation, it can last indefinitely.

Effects of National Emergency

- **Transformation of Federal Structure**:
  - The Constitution's **federal structure** shifts to a **unitary one**, centralizing power with the **Central government**.
  - **Parliament** can legislate on **State List subjects** for the entire country or specific regions.
- **State Control**:
  - The **Government of India** can issue **directives** to states regarding the exercise of their **executive powers**.
- **Extension of Legislative Terms**:
  - The **Lok Sabha** and **state legislatures** can extend their tenure by **one year** at a time during the emergency. The extension can continue for up to **six months** beyond the end of the emergency.

testbook PASS PRO MAX

- **Alteration of Financial Resources**:
  - The **President** can modify the **distribution of resources** between the **Union** and the **States** during the emergency.
- **Suspension of Fundamental Rights**:
  - **Article 19** (freedom of speech, assembly, etc.) is **suspended** immediately for the duration of the emergency under **Article 358**.
  - These rights remain restricted until the emergency is **revoked**.

National Emergency in India

- October 1962: Chinese aggression - It continued till January 1968.
- December 1971: Indo-Pak war - It continued till March 1977.
- June 1975: Internal political crisis - It continued till March 1977.
  - NOTE: After 1977, no such emergency has been pronounced.

testbook PASS PRO MAX